

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #04	CCRB Case #: 201500870	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/06/2015 7:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/6/2016	Precinct: 23		
Date/Time CV Reported Fri, 02/06/2015 10:09 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/06/2015 10:09 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Edwin Jerez	3670	941258	023 PCT
2. POM Charles Morales	28876	946026	023 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Norman Ortega	25560	947823	023 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Edwin Jerez	Abuse: Sgt. Edwin Jerez stopped § 87(2)(b)	A . Exonerated
B . POM Charles Morales	Abuse: PO Charles Morales stopped § 87(2)(b)	B . Exonerated
C . SGT Edwin Jerez	Discourtesy: Sgt. Edwin Jerez spoke rudely to § 87(2)(b)	C . Unsubstantiated

Case Summary

On February 6, 2015, § 87(2)(b) filed this complaint with the CCRB by phone (Encl. 3A-B).

On February 6, 2015, at approximately 7:00 a.m., § 87(2)(b) walked downstairs from his apartment, which is located on § 87(2)(b) in Manhattan, to check if his son's school bus was outside of the building yet. § 87(2)(b) exited the building and walked approximately twenty-five yards to the corner § 87(2)(b), which is where his son's school bus stops.

When § 87(2)(b) reached the intersection, there was a school bus parked at the bus stop. § 87(2)(b) approached the bus and tried to look to see who the driver was, so he would know if it was the correct bus. While § 87(2)(b) stood looking at the bus, he noticed two uniformed police officers, PO Charles Morales and Sgt. Edwin Jerez, exit an unmarked vehicle, but he did not pay any attention to what the officers were doing.

Moments later, § 87(2)(b) felt two people grab his arms from behind, and immediately place him in handcuffs (**Allegations A and B**). § 87(2)(b)'s initial reaction was to try to shake off whoever had grabbed him, but when he turned his head he saw it was PO Morales and Sgt. Jerez standing behind him, and § 87(2)(b) stopped struggling.

§ 87(2)(b) asked, "What are you guys doing? I'm just waiting for my son's bus." Sgt. Jerez replied, "Don't fuck me, we know who you are. Don't give me no fucking shit" (**Allegation C**). § 87(2)(b) was brought over to a gate in front of a pharmacy. He told the officers that his son was in the lobby of his apartment building and would be coming out to catch his bus soon, but Sgt. Jerez told § 87(2)(b) "You know who the fuck you are, don't give me no fucking story" (**subsumed within Allegation C**). The officers did not ask § 87(2)(b) any questions, nor did they explain why they had stopped him.

PO Morales walked away from § 87(2)(b) and Sgt. Jerez, but he did not see where PO Morales went. § 87(2)(b) observed two other uniformed police officers walking across the street as well. PO Morales returned several minutes later and told Sgt. Jerez that they had stopped the wrong person. § 87(2)(b) was then released. He was not summonsed or arrested.

Mediation, Civil, and Criminal Histories

§ 87(2)(b) rejected mediation. § 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) A notice of claim request was submitted to the Comptroller's officer on April 21, 2015 (Encl. 6A). It will be added to the case file upon its receipt.

Civilian and Officer CCRB Histories

This is § 87(2)(b)'s first complaint filed with the CCRB (Encl. 2C). PO Morales has been a member of service for seven years. There are no substantiated allegations against him, § 87(2)(g) (Encl. 2B). Sgt. Jerez has been a member of service for eight years. There are no substantiated allegations against him, § 87(2)(g)

Findings and Recommendations

Allegation A – Abuse of Authority: Sgt. Edwin Jerez stopped § 87(2)(b)

Allegation B – Abuse of Authority: PO Charles Morales stopped § 87(2)(b)

The following facts are undisputed. PO Morales and Sgt. Jerez received a report from PO Norman Ortega, who was stationed on the roof of a building at the corner of § 87(2)(b) in Manhattan, of an individual § 87(2)(b) g transaction in front of a deli located on § 87(2)(b). The individual was described as a male in all-black clothing. PO Morales and Sgt. Jerez were inside of their parked vehicle at the intersection of § 87(2)(b) when they received the description. Less than one minute after receiving the description of the individual from PO Ortega, PO Morales and Sgt. Jerez observed § 87(2)(b) walking northbound on § 87(2)(b) towards the officers' location. § 87(2)(b) is a black male, and was wearing black pants and a black jacket that day. Upon observing § 87(2)(b) Sgt. Jerez and PO Morales both immediately exited their vehicle, approached § 87(2)(b) grabbed his arms, and placed him in handcuffs.

§ 87(2)(g) PO Morales and Sgt. Jerez stated in their interviews (Encl. 4L-M and 4E-F, respectively) that the suspect had been described as a black male. PO Ortega testified that he had reported the suspect as being a Hispanic male. As the officers were communicating using point-to-point radio transmission, no recording of their communication exists. In PO Morales and Sgt. Jerez' account of the incident, § 87(2)(b) is an exact match of the suspects' description they had received. § 87(2)(g)

§ 87(2)(g) PO Ortega, on the other hand, had no interaction with § 87(2)(b) § 87(2)(g)

According to People v. Bennett, 37A.D.3d 483 (2nd Dept.-2007), (Encl. 1A-B), police officers have reasonable suspicion to detain an individual if that person generally matches the description of a suspect, the individual is in close proximity to the site of the crime, and a short amount of time has elapsed between the commission of the crime and the officers' observation of the individual.

§ 87(2)(g) It is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C – Discourtesy: Sgt. Edwin Jerez spoke rudely to § 87(2)(b)

It is undisputed that PO Morales and Sgt. Jerez placed § 87(2)(b) in handcuffs. It is also undisputed that § 87(2)(b) told the officers that they had the wrong person, and that he was just waiting for his son's school bus. § 87(2)(g)

In § 87(2)(b)'s statement (Encl. 3D-E), he alleged that Sgt. Jerez told § 87(2)(b) "Don't fuck me. We know who you are. Don't give me no fucking shit." When § 87(2)(b) insisted that they had the wrong guy, and his son was on the way out their apartment building, Sgt. Jerez said, "You know who the fuck you are, don't give me no fucking story."

In Sgt. Jerez' statement, he denied having any conversation with § 87(2)(b) until § 87(2)(b) was released from handcuffs. At that point, Sgt. Jerez explained the reason the officers had stopped § 87(2)(b) and placed him in handcuffs. Sgt. Jerez denied making the alleged statements, or using any profanity whatsoever while speaking to § 87(2)(b)

In PO Morales' statement, he claimed that Sgt. Jerez responded to § 87(2)(b)'s insistence that they had stopped the wrong person by saying, "Don't play that." Sgt. Jerez then explained to § 87(2)(b) that they were stopping him because he matched the description of a person suspected of selling drugs, and that they placed him in handcuffs for their own safety. PO Morales denied hearing Sgt. Jerez make the alleged statements, or use any other profanity while speaking to § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date